

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:  
Purchased: \_\_\_\_\_

-----X  
ISABEL RODRIGUEZ,

Plaintiff designates  
Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the  
tort arose

-against-

THE CITY OF NEW YORK, HECTOR BASORA P.O.  
OF THE 45 PCT., SHIELD #2526, TAX ID #960211,  
KRISTOPHER SAUD P.O. OF THE 45 DET. SQUAD,  
OTHER NEW YORK CITY POLICE OFFICERS  
UNDER ARREST #B17639262 WHOSE NAMES ARE  
NOT KNOWN AT THIS TIME N/H/A JOHN/JANE  
DOE I-IV, AS IT PERTAINS TO THE INCIDENT  
THAT AROSE ON AUGUST 3, 2017 AND NO  
OTHER,

**SUMMONS**

Plaintiff resides at

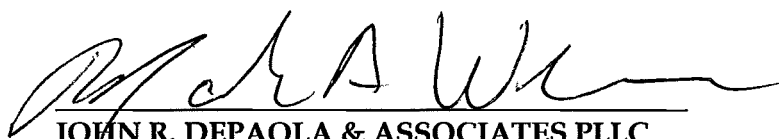
ISABEL RODRIGUEZ  
1550 Parker Avenue  
Bronx, New York 10462

Defendants.

-----X  
TO THE ABOVE-NAMED DEFENDANT:

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this  
action and to serve a copy of your answer, or if the complaint is not served with this  
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days  
after the service of this summons, exclusive of the day of service (or within 30 days after  
the service is complete if this summons is not personally delivered to you within the State  
of New York) and, in case of your failure to appear or answer, judgment will be taken  
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
October 26, 2018



**JOHN R. DEPAOLA & ASSOCIATES PLLC  
BY: MARKUS A. WILSON**

*Attorneys for Plaintiff(s)*  
42-40 Bell Boulevard Suite 500  
Bayside, New York 11361  
(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK**

100 Church Street  
New York, New York 10007

**HECTOR BASORA P.O. OF THE 45 PCT.  
SHIELD #2526, TAX ID #960211**

2877 Barkley Avenue  
Bronx, New York 10465

**KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD**

2877 Barkley Avenue  
Bronx, New York 10465

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased \_\_\_\_\_

-----X  
ISABEL RODRIGUEZ,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, HECTOR BASORA P.O.  
OF THE 45 PCT., SHIELD #2526, TAX ID #960211,  
KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD,  
OTHER NEW YORK CITY POLICE OFFICERS  
UNDER ARREST #B17639262 WHOSE NAMES ARE  
NOT KNOWN AT THIS TIME N/H/A JOHN/JANE  
DOE I-IV, AS IT PERTAINS TO THE INCIDENT  
THAT AROSE ON AUGUST 3, 2017 AND NO OTHER,

Defendants.

-----X

ISABEL RODRIGUEZ, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION**

1. At all times mentioned, Plaintiff ISABEL RODRIGUEZ was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 31<sup>st</sup> day of May, 2018 and within ninety (90) days after some or all of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211, KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17639262 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about August 3, 2017, at approximately 3:00 A.M., in the vicinity of the inside of 1550 Parker Avenue, basement, which the police state occurred on August 2, 2017 at approximately 8:15 P.M., in the vicinity of the inside of

1550 Parker Avenue, Apt. 1A, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **ISAEL RODRIGUEZ**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff in the manner they did which was excessive causing the Plaintiff physical and emotional injury, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. The police further did subject the Plaintiff to a strip-search with cavity inspection even though the Defendants had no legal cause to believe the Plaintiff had secreted contraband on his person.

**AS AND FOR A SECOND CAUSE OF ACTION**

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about August 3, 2017, at approximately 3:00 A.M., in the vicinity of the inside of 1550 Parker Avenue, basement, which the police state occurred on August 2, 2017 at approximately 8:15 P.M., in the vicinity of the inside of 1550 Parker Avenue, Apt. 1A, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **ISAEL RODRIGUEZ** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions

placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A THIRD CAUSE OF ACTION**

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about August 3, 2017, at approximately 3:00 A.M., in the vicinity of the inside of 1550 Parker Avenue, basement, which the police state occurred on August 2, 2017 at approximately 8:15 P.M., in the vicinity of the inside of 1550 Parker Avenue, Apt. 1A, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX030893. The Plaintiff was thereafter held in custody over the course of approximately six (6) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this particular case, Plaintiff had lost power in his apartment and he decided to go the basement to try to turn off the breakers box. While he was working on the electricity in the basement, the police knocked on the basement door and demanded that Plaintiff opened the door. Plaintiff had been watching the police officers

through the security cameras. Plaintiff advised the officers he was the manager of the building and that he was only working on the electricity and asked if the officers had a warrant of order for his arrest. The police officers broke down the door while he was still fixing the problem with the electricity. When the officers got in, Plaintiff sat down in a chair and put his hands up. Plaintiff was searched and rear cuffed. A Spanish officer punched Plaintiff in the left temple after he was cuffed. Plaintiff was never told why he was being arrested and he was taken to the 45 Precinct where he was processed. While in custody Plaintiff asked for medical attention because he was bleeding and had bruises on his body. Plaintiff was also experiencing pain in his neck, back and chest area.

**AS AND FOR A FOURTH CAUSE OF ACTION**

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about August 3, 2017, at approximately 3:00 A.M., in the vicinity of the inside of 1550 Parker Avenue, basement, which the police state occurred on August 2, 2017 at approximately 8:15 P.M., in the vicinity of the inside of 1550 Parker Avenue, Apt. 1A, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully searched, seized and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged

him with the crimes on Docket No. 2017BX030893. The Plaintiff was thereafter held in custody over the course of approximately six (6) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. While he was working on the electricity in the basement, the police knocked on the basement door and demanded that Plaintiff opened the door. The police officers broke down the door while he was still fixing the problem with the electricity. When the officers got in, Plaintiff sat down in a chair and put his hands up. Plaintiff was searched and rear cuffed. An NYPD officer punched Plaintiff in the left temple after he was cuffed. Plaintiff was never told why he was being arrested and he was taken to the 45 Precinct where he was processed. While in custody Plaintiff asked for medical attention because he was bleeding and had bruises on his body. Plaintiff was also experiencing pain in his neck, back and chest area.

**AS AND FOR A FIFTH CAUSE OF ACTION**

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about August 3, 2017 and from that time until the dismissal of charges on or about February 27, 2018, which was a favorable termination for the accused by the Hon. M. Michael, presiding at Bronx County Criminal Court, Part FB, Defendants **THE CITY OF NEW**

YORK, HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211, KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17639262 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, deliberately and maliciously prosecuted Plaintiff ISABEL RODRIGUEZ, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2017BX030893 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges. Officers HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211 along with JOHN/JANE DOE I-IV provided false information in said case that

Plaintiff was in actual constructive or statutory possession of contraband.

These observations were false and led Plaintiff to be falsely arrested, illegally searched and seized and maliciously prosecuted. Said Officers claimed Plaintiff was in actual constructive or statutory possession of contraband, even though there was no probable cause to believe that Plaintiff had committed any crime or violation of the law.

**AS AND FOR A SIXTH CAUSE OF ACTION**

**(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)**

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants **HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211, KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17639262 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

22. Plaintiff **ISABEL RODRIGUEZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about August 3, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **ISABEL RODRIGUEZ**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. The police officers broke down the door while he was still fixing the problem with the electricity. When the officers got in, Plaintiff sat down in a chair and put his hands up. Plaintiff was searched and rear cuffed. An NYPD officer punched Plaintiff in the left temple after he was cuffed. Plaintiff was never told why he was being arrested and he was taken to the 45 Precinct where he was processed. While in custody Plaintiff asked for medical attention because he was bleeding and had bruises on his body. Plaintiff was also experiencing pain in his neck, back and chest area. **HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211** and **KRISTOPH PERSAUD P.O. OF THE 45 DET.**

SQUAD were the officers who signed the criminal complaint in the instant matter. Officers HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211 and along with JOHN/JANE DOE I-IV were all involved in an investigation that wrongfully led the arrest of the Plaintiff. Officers HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211 along with JOHN/JANE DOE I-IV provided false information that led to the arrest of the Plaintiff. The Plaintiff to be falsely arrested, illegally searched and seized. Said Officers claimed Plaintiff was in actual constructive or statutory possession of contraband, even though there was no probable cause to believe that Plaintiff had committed any crime or violation of the law. Said Officers provided statements that led the Plaintiff to be arrested and later malicious prosecuted. The Plaintiff is not certain of the officer who actually placed him in handcuffs, though he knows HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #96021 was the arresting officer and signed the felony complaint. Plaintiff was then taken to Jacobi medical center where x-rays were taken. Plaintiff went to see Dr. Sandrine Hammonds for a pinched nerve in his back and Dr. Zagla Huseine for pain management. Plaintiff receives a home health care attendant since this arrest. Also saw a psychiatrist, Dr. Ruth Warrick. KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD also was involved in investigating Plaintiff and illegally searching and seizing Plaintiff.

25. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person;
  - b. Freedom from battery to his person;
  - c. Freedom from illegal search and seizure;
  - d. Freedom from false arrest;
  - e. Freedom from malicious prosecution;
  - f. Freedom from the use of excessive force during the arrest process;
  - g. Freedom from unlawful imprisonment;
  - h. Freedom from loss of his liberty.
  - i. Freedom from being illegally strip-searched.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court

authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
  2. Excessive force cannot be used against an individual who does not physically resist arrest.
  3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
31. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely

arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR AN EIGHTH CAUSE OF ACTION**

32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "31" as it set forth at length herein.
33. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

**WHEREFORE**, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York  
October 26, 2018

Yours, etc.

**JOHN R. DEPAOLA & ASSOCIATES PLLC**

A handwritten signature in black ink, appearing to read 'Markus A. Wilson', written over a horizontal line.

**BY: MARKUS A. WILSON**  
*Attorneys for Plaintiff(s)*  
42-40 Bell Boulevard Suite 500  
Bayside, New York 11361  
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased: \_\_\_\_\_

-----X  
ISABEL RODRIGUEZ,

Plaintiff,

-against-

## VERIFICATION

THE CITY OF NEW YORK, HECTOR BASORA P.O.  
OF THE 45 PCT., SHIELD #2526, TAX ID #960211,  
KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD,  
OTHER NEW YORK CITY POLICE OFFICERS  
UNDER ARREST #B17639262 WHOSE NAMES ARE  
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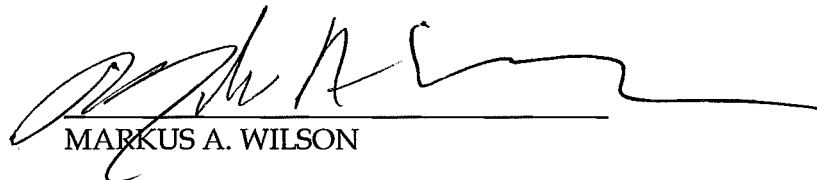
Defendants.

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I, MARKUS A. WILSON, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
October 26, 2018



MARKUS A. WILSON

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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ISABEL RODRIGUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, HECTOR BASORA P.O. OF THE 45 PCT., SHIELD #2526, TAX ID #960211, KRISTOPH PERSAUD P.O. OF THE 45 DET. SQUAD, OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17639262 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 3, 2017 AND NO OTHER,

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

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JOHN R. DEPAOLA & ASSOCIATES PLLC  
BY: MARKUS A. WILSON  
Attorney for Plaintiff(s)  
42-40 Bell Boulevard  
Bayside, NY 11361  
Tel. (718) 281-0400

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To: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

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Service of a copy of the within is hereby admitted.

Dated

\_\_\_\_\_

Attorney(s) for